

COMPLAINT NO. 2022-00344

IN THE MATTER OF

ANA ELIZONDO

§ **BEFORE THE TEXAS BEHAVIORAL**
§ **HEALTH EXECUTIVE COUNCIL**
§
§ **THE TEXAS STATE BOARD**
§ **OF EXAMINERS OF**
§ **PROFESSIONAL COUNSELORS**

AGREED ORDER

Pursuant to its authority under §507.305 of the Texas Occupations Code, §2001.056 of the Government Code, and 22 Texas Administrative Code §884.12(e), the Executive Director for the Texas Behavioral Health Executive Council ("Council") hereby approves, ratifies, and enters this Agreed Order with the following Findings of Fact, Conclusions of Law, and Order of Council, which have been approved and accepted by **ANA ELIZONDO** ("Respondent") and which constitutes a full settlement and compromise of the complaint(s) currently pending against Respondent before the Council in the above-referenced and numbered matter(s).

FINDINGS OF FACT

1. Respondent is licensed as a professional counselor (#76772) in the State of Texas and is, therefore, subject to the jurisdiction of the Council.
2. Respondent has been impaired in a way that may affect her provision of professional counseling services.

CONCLUSIONS OF LAW

1. Respondent voluntarily received a license from the Council and, therefore, is bound by the provisions of Chapters 503 and 507 of the Texas Occupations Code and the Rules of the Council, 22 Texas Administrative Code Parts 30 and 41.
2. Violation of the Council's Rules is unprofessional conduct and constitutes grounds for the imposition of sanctions under §§503.401, 507.301, and 507.351 of the Texas Occupations Code.
3. Based on the above Findings of Fact, the Council finds that Respondent violated 22 Tex. Admin. Code § 681.41.

ORDER

IT IS HEREBY ORDERED, ADJUDGED, AND DECREED THAT:

1. Respondent's license (#76772) is hereby temporarily suspended as of date of ratification of this order. During the temporary suspension Respondent shall receive treatment from a licensed professional counselor and a psychiatrist, as detailed and required in Nos. 4 and 5 below. Respondent's LPC and psychiatrist must submit reports to the Council, or the Council's designee, indicating whether Respondent is fit to continue providing professional counseling services to clients. Upon the Council's receipt of reports from both the LPC and psychiatrist that Respondent is fit to continue practicing professional counseling, then Respondent's temporary suspension shall be released, allowing Respondent to practice professional counseling under the terms and conditions of this order. Respondent shall refrain from counseling clients until Respondent is fully released to return to serving clients in counseling by both her psychiatrist and counselor. Such a release shall be made by the psychiatrist and the counselor in writing and shall be sent to the Council.
2. Once Respondent is fully released to return to serving clients in counseling by both her psychiatrist and counselor, Respondent's license is SUSPENDED for a period of two (2) years. However, the two (2) years of suspension shall be PROBATED, so long as Respondent complies with all state and federal statutes and regulations pertaining to the practice of professional counseling. Although the probated suspension ordered herein will result in Respondent's license being restricted, Respondent shall take all steps necessary to renew and maintain Respondent's license while this order is in effect. Respondent's license shall remain on restricted status until all terms of this order have been satisfactorily completed.
3. Respondent, within thirty (30) days of the date this order is ratified, shall complete and submit proof of completion of ten (10) hours of professional development relating to trauma, therapist burnout, stress, or any combination thereof. This professional development is in addition to the professional development hours required for license renewal. Respondent will pay all costs of the coursework.
4. Once Respondent is fully released to return to serving clients in counseling by both her psychiatrist and counselor, Respondent shall be required to participate in therapy for no less than two years. Respondent shall, within thirty (30) days of the date this order is ratified, submit to the Council, or its designee, for approval the name and qualifications of a licensed professional counselor who has agreed to provide Respondent therapy. The Respondent must submit a copy of the therapist's CV and receive written approval from the Council, or its designee, before any of the therapy Respondent receives may be acceptable to meet the requirements of this order. The therapist shall (1) be Texas-licensed professional counselor with no record of disciplinary actions; and (2) have no business, professional, personal, or other relationship with Respondent that would interfere with the

therapist's function or duties. Once approved, the therapist shall submit to the Council, or its designee, a treatment plan by which the therapist plans to assess and treat the Respondent; the therapist may make modification to the treatment plan at the therapist's discretion, and any medications shall be reported to the Council, or its designee, in writing. Respondent must attend therapy at least twice a month but if Respondent's therapist recommends therapy on a more frequent basis then Respondent must comply with such recommendations. Respondent may designate an alternative therapist using the above qualifications and procedures and approvals and may use this alternative therapist to provide up to three emergency therapy sessions a year, should there be a scheduling issue with Respondent's primary therapist. Respondent must notify the Council within three days of meeting with the alternative therapist. If an alternative therapist is needed or used then the alternative therapist must coordinate care with the regular therapist pursuant to 22 Tex. Admin. Code § 681.38(e). Respondent may use telehealth sessions, so long as the sessions consist of live video conferences.

It shall be Respondent's responsibility to assure the therapist submits written reports to the Council, or its designee, on a quarterly basis verifying that therapy has taken place, providing a general opinion and evaluation of the Respondent, and providing an opinion regarding the Respondent's ability to provide professional counseling services in safe and competent manner as well as any recommendations to enhance or maintain Respondent's fitness to practice professional counseling.

In the event Respondent's therapist indicates that Respondent is fit to practice professional counseling, but makes recommendations concerning reasonable steps Respondent must or should take to enhance or maintain Respondent's fitness to practice professional counseling, Respondent shall comply with any and all recommendations made by Respondent's therapist. If Respondent refuses or fails to follow the recommendations, Respondent agrees that Respondent's license shall be **SUSPENDED**, without further hearings, informal settlement procedures, or any right of appeal for judicial review; pending further review of Respondent by the Council, or its designee.

If the therapist indicates there is sufficient concern or need to impose further requirements, restrictions, and/or take other appropriate actions to ensure the safety of the public the Council, or its designee, may do so at its own discretion. In the event Respondent refuses or fails to follow the additional requirements or restrictions imposed by the Council, or its designee, Respondent agrees that Respondent's license shall be **SUSPENDED**, without further hearings, informal settlement procedures, or any right of appeal for judicial review; pending further review of Respondent by the Council, or its designee.

After a full two (2) years of therapy, and only if the Respondent's therapist recommends doing so in writing, Respondent may submit a written request to the Council, or its designee, to end this required therapy; and the Council, or its designee, may grant or deny this request at its own discretion. A full year of therapy shall be 365 days from the date Respondent has the first therapy session once Respondent is fully released to return to

serving clients in counseling by both her psychiatrist and therapist, and continued for the minimum required two (2) sessions per month. If the therapist cannot continue providing therapy, Respondent shall get approval from the Council, or its designee, for a new therapist. If Respondent does not have any therapy for a period of more than forty-five (45) days Respondent's license shall be SUSPENDED, without further hearings, informal settlement procedures, or any right of appeal for judicial review; until therapy resumes and the therapist submits a report attesting to Respondent's fitness to provide professional counseling services in safe and competent manner. During any period of non-therapy, the therapy time period shall be tolled and any period of non-therapy shall not apply to the reduction of this required therapy time period. Respondent shall pay all costs associated with this therapy requirement.

5. Once Respondent is fully released to return to serving clients in counseling by both her psychiatrist and counselor, Respondent shall be required to receive psychiatric treatment for no less than two years. Respondent shall, within thirty (30) days of the date this order is ratified, submit to the Council, or its designee, for approval the name and qualifications of a psychiatrist who has agreed to provide Respondent treatment. The Respondent must submit a copy of the psychiatrist's CV and receive written approval from the Council, or its designee, before any of the treatment Respondent receives may be acceptable to meet the requirements of this order. Once approved, the psychiatrist shall submit to the Council, or its designee, a treatment plan by which the psychiatrist plans to assess and treat the Respondent; the psychiatrist may make modification to the psychiatrist's plan at the psychiatrist's discretion, and any medications shall be reported to the Council, or its designee, in writing. Respondent must attend treatment on a quarterly basis but if Respondent's psychiatrist recommends treatment on a more frequent basis then Respondent must comply with such recommendations.

It shall be Respondent's responsibility to assure the psychiatrist submits written reports to the Council, or its designee, on a quarterly basis verifying that treatment has taken place, providing a general opinion and evaluation of the Respondent, and providing an opinion regarding the Respondent's ability to provide professional counseling services in safe and competent manner as well as any recommendations to enhance or maintain Respondent's fitness to practice professional counseling.

In the event Respondent's psychiatrist indicates that Respondent is fit to practice professional counseling, but makes recommendations concerning reasonable steps Respondent must or should take to enhance or maintain Respondent's fitness to practice professional counseling, Respondent shall comply with any and all recommendations made by Respondent's psychiatrist. If Respondent refuses or fails to follow the recommendations, Respondent agrees that Respondent's license shall be SUSPENDED, without further hearings, informal settlement procedures, or any right of appeal for judicial review; pending further review of Respondent by the Council, or its designee.

If the psychiatrist indicates there is sufficient concern or need to impose further

requirements, restrictions, and/or take other appropriate actions to ensure the safety of the public the Council, or its designee, may do so at its own discretion. In the event Respondent refuses or fails to follow the additional requirements or restrictions imposed by the Council, or its designee, Respondent agrees that Respondent's license shall be SUSPENDED, without further hearings, informal settlement procedures, or any right of appeal for judicial review; pending further review of Respondent by the Council, or its designee.

After a full two (2) years of treatment, and only if the Respondent's psychiatrist recommends doing so in writing, Respondent may submit a written request to the Council, or its designee, to end this required treatment; and the Council, or its designee, may grant or deny this request at its own discretion. A full year of treatment shall be 365 days from the date Respondent has the first psychiatry session once Respondent is fully released to return to serving clients in counseling by both her psychiatrist and therapist, and continued for the minimum required quarterly sessions. If the psychiatrist cannot continue providing treatment, Respondent shall get approval from the Council, or its designee, for a new psychiatrist. If Respondent does not have any treatment for a period of more than forty-five (45) days Respondent's license shall be SUSPENDED, without further hearings, informal settlement procedures, or any right of appeal for judicial review; until treatment resumes and the psychiatrist submits a report attesting to Respondent's fitness to provide professional counseling services in safe and competent manner. During any period of non-treatment, the treatment time period shall be tolled and any period of non-treatment shall not apply to the reduction of this required psychiatry treatment time period. Respondent shall pay all costs associated with this psychiatry requirement.

6. Respondent shall strictly follow her medication schedule during the probated suspension, as dictated by her psychiatrist and other medical professionals.

WARNING

RESPONDENT'S FAILURE TO COMPLY WITH ONE OR MORE TERMS OF THIS ORDER MAY CONSTITUTE A VIOLATION OF 22 TEXAS ADMINISTRATIVE CODE §884.55 REQUIRING FURTHER DISCIPLINARY ACTION.

WAIVERS

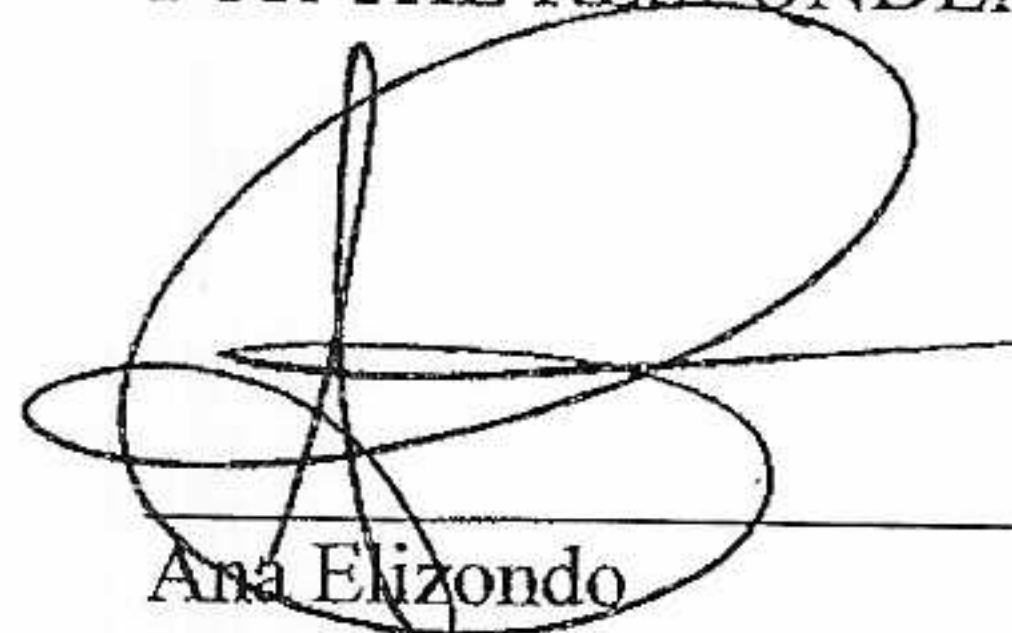
On the underlying investigative file, Respondent has waived his or her right to an informal settlement conference, a formal hearing before an Administrative Law Judge at the State Office of Administrative Hearings (SOAH), and judicial review pursuant to Texas Government Code Chapter 2001, in exchange for the conditions set out in this Agreed Order.

THE RESPONDENT, BY SIGNING THIS ORDER, AGREES TO ITS TERMS, ACKNOWLEDGES UNDERSTANDING OF THE FORMAL NOTICES, FINDINGS OF FACT, AND CONCLUSIONS OF LAW SET FORTH HEREIN AND COVENANTS TO

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SATISFACTORILY COMPLY WITH THE MANDATES OF THIS ORDER IN A TIMELY MANNER. RESPONDENT FURTHER ACKNOWLEDGES AND AGREES THAT HE OR SHE HAS AGREED TO THIS ORDER UPON THE ADVICE AND CONSENT OF COUNSEL, OR THAT HE OR SHE HAS HAD THE OPPORTUNITY TO HAVE THIS ORDER REVIEWED BY COUNSEL OF HIS OR HER CHOICE.

FOR THE RESPONDENT:



Ana Elizondo
Licensed Professional Counselor
License No. 76772

DATE SIGNED: 5-22-24

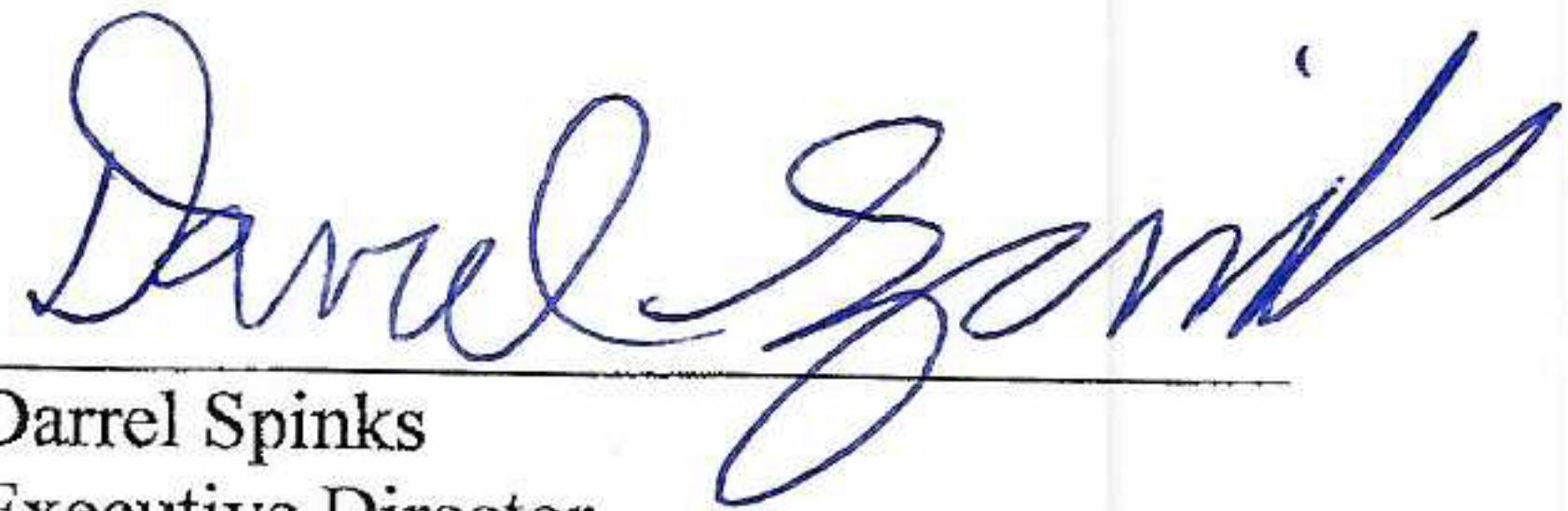
FOR THE STAFF OF THE COUNCIL:



Kenneth Long
Texas Bar No. 24078877
Staff Attorney
Texas Behavioral Health Executive Council
1801 Congress Ave., Ste. 7.300
Austin, Texas 78701

DATE SIGNED: 5/22/2024

APPROVED, RATIFIED, AND ENTERED THIS 22nd DAY OF May, 2024.



Darrel Spinks
Executive Director
Texas Behavioral Health Executive Council